

Court No. - 37

Case :- WRIT - C No. - 22088 of 2012

Petitioner :- Shiv Baboo Yadav @ Ashok Kumar

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Awdhesh Kumar Mishra

Respondent Counsel :- C. S. C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

Put up on 09.05.2012 to enable Shri H.P. Dube, learned counsel for the respondent corporation to seek instructions in the matter.

Order Date :- 7.5.2012

SP/

Court No. - 37

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Petitioner :- Shiv Baboo Yadav @ Ashok Kumar

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Awdhesh Kumar Mishra

Respondent Counsel :- C. S. C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

On the request of Shri H.P. Dube, put up again on Monday in the additional cause list to enable him to complete the instructions in the matter.

Order Date :- 9.5.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 22088 of 2012

Petitioner :- Shiv Baboo Yadav @ Ashok Kumar

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Awdhesh Kumar Mishra

Respondent Counsel :- C. S. C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Aditya Nath Mittal,J.

1. Heard learned counsel for the parties.
2. This writ petition is directed against the demand of Rs.1,28,076/- towards electricity dues in a theft case, on the basis of provisional assessment.
3. It is submitted by learned counsel appearing for the petitioner that the order of provisional assessment was not served on the petitioner due to which no objections could be filed and that no final assessment has been made under Section 126 (3) of the Electricity Act, 2003, which may give a right to the petitioner to file an appeal. The entire assessment, demand and recovery vide citation to recover by adopting coercive step, including arrest, detention, attachment and sale is thus violative of the principles of natural justice and ultra vires the provisions of the Indian Electricity Act, 2003.
4. Shri H.P. Dubey appearing for the respondent nos.4 and 5 was required to seek instructions. He has produced the provisional assessment order dated 16.3.2011, which according to him was sent to the petitioner by courier service making assessment of Rs.1,28,054/- as electricity dues on the basis of the formula prescribed in the U.P. Electricity Supply Code, 2005 and Rs.1 lac as compounding fees.
5. From the documents produced by Shri H.P. Dubey, we do not find that there is any material to show that the provisional assessment order was served, and further whether any final assessment order was made before initiating the recovery under the U.P. Electricity Undertaking Recovery of Dues Act, 1958.
6. The petitioner has not deposited the compounding charges as he was granted interim bail in pursuance to the order of this Court dated 28.3.2011 in Writ Petition No.9577 of 2011. The compounding charges are to be deposited, if the petitioner admits

the offence. These charges are to be deposited, if the petitioner admits the offence. These charges cannot be recovered as arrears of land revenue.

7. This writ petition as against the recovery of the electricity dues of Rs.1,28,076/-, which includes recovery charges at 10% and compounding charges of Rs.100,000/- is consequently **allowed**. A copy of the provisional assessment order has been served upon the counsel for the petitioner in Court today. He will file objections to the provisional assessment within 15 days on which the respondent will be at liberty to make a final assessment order, under Section 126 (3) subject to appeal under Section 127 of the Act.

Order Date :- 14.5.2012

SP/